

**IN THE COURT OF PRINCIPAL DISTRICT MUNSIF,
AT ULUNDURPET**

**Present : Tmt.A.ELAKIYA B.C.A.,LL.B[Hons].,LL.M.,
Principal District Munsif, Ulundurpet.**

WEDNESDAY THE 25TH DAY OF MARCH 2026

I.A.NO. 3 / 2024

IN

I.A.NO. 419 / 2012

IN

O.S.NO. 116 /2012

1.Booma Devi

2.Arun Kumar

3.Anitha

4.Minor Arjunan

(Rep.by his guardian/
mother 1st Petitioner)

.....Petitioners

-VS-

1.Ramalingam

.....Respondent/Petitioner/Plaintiff

2.Krishnanveni

.....Respondent/Respondent/Defendant

This application came up before me on 21.01.2026 for final hearing in the presence of Learned Advocate Mr.A.Rajagopal B.A.,B.L., counsel for the Petitioners and the Respondents were set Ex-Parte. Upon hearing the Petitioners side arguments and upon perusing the documents on record and having stood over for consideration till this day, this court delivered the following:

ORDER

This Application is filed under Order XXXVIII Rule 8 of the Code of Civil Procedure to remove the attachment made over the petition mentioned properties through a registred Doc.No.8/2012 on 23.07.2012 by way of order passed in I.A.No.419/2012 in O.S.No.116/2012 and for cost.

1. GIST OF PETITION AVERMENT:

1.1 The Petitioners submit that, the petition mentioned properties are originally belongs to the 2nd Respondent by way of Partition Deed dated 29.01.2007, she sold the same to and in favour of one Kannan on 26.03.2009. Thereafter, the said Kannan possessed and enjoyed the same and died intestate leaving behind the Petitioners as his only legal heirs. So, the petitioners are being the only legal heirs of the deceased Kannan; as per the Hindu Succession Act, the Petitioners were transferred patta for the petition mentioned properties in their name and enjoys the same. The 2nd Respondent after sold the petition mentioned properties to one Kannan on 26.03.2009, she ceased with all the rights over the petition mentioned properties, but the 1st Respondent propagating that, the petition mentioned properties are belongs to the 2nd Respondent, filed the original suit and in which filed an interlocutory application in I.A.No.419/2012 to make the petition mentioned properties to be attached before judgment without producing any supportive documents and the same was allowed and the petition mentioned

properties were attached and registered in Doc.No.8/2012 on 23.07.2012. On the said date the 2nd Respondent didn't have any right over the petition mentioned properties, so the attachment made over the petition mentioned properties are unfair and wrong. Further submits that, the Petitioners to get loan from the bank; on 04.04.2024 while checks the encumbrance in the online; have came to know about the above said attachment over the petition mentioned properties. Further submits, the petition mentioned properties are belongs to the 1st Petitioner's husband Kannan, the 2nd Respondent didn't have any right over the petition mentioned properties at the time of attachment made. Hence this application has been filed to remove the attachment made over the petition mentioned properties through a registered Doc.No.8/2012 on 23.07.2012 by way of order passed in I.A.No.419/2012 in O.S.No.116/2012 and prays to allow this application.

2. Respondents were set Ex-Parte.

3.POINTS FOR DETERMINATION:

1. Whether this application is deserve to be allowed as prays for?

Both side not adduced any oral evidence. Petitioners side Ex.P1 to Ex.P9 were marked. Respondents side no exhibits marked.

4.DISCUSSION:

4.1 On considering the facts and circumstances, the case of the Petitioners is that the petition mentioned properties are originally belongs to 2nd Respondent and she sold the same to one Kannan on 26.03.2009 to prove the same marked Ex.P1 to Ex.P4. From Ex.P1 it is proved that , the 2nd Respondent who sold the petition mentioned properties to and in favour of Kannan on 26.09.2009. The said Kannan who was expired leaving behind the Petitioners as his only legal heirs, which is

proved from Ex.P7 and Ex.P8. After his demise, the Petitioners are being legal heirs of the deceased Kannan who possessed and enjoys the petition mentioned properties which is revealed from Ex.P2 to Ex.P4. On careful analysis of Ex.P5 it shows that the petition mentioned properties were attached by the court order passed in I.A.No.419/2012 on 23.07.2012 and registered in Doc.No.8/2012. From Ex.P1 it is proved that, the 2nd Respondent sold the petition mentioned properties to 1st Petitioner's husband Kannan in the year 2009 itself, therefore after the said sale deed from 2009 the 2nd Respondent ceased with all the rights over the petition mentioned properties.

4.2 At this circumstance, the petition mentioned properties were attached in the year 2012 only, from Ex.P1 it is very clear that at the time of attachment made over in the year of 2012 the 2nd Respondent didn't have any right over the petition mentioned properties. Further, the Original suit in O.S.No.116/2012 had been instituted by the 1st Respondent against the 2nd Respondent in the year 2012. Prior to filing the said original suit, the 2nd Respondent sold the petition mentioned properties. Therefore, at the time of filing the original suit the itself petition mentioned properties were not in the name of 2nd Respondent and she didn't have any right over it, at this juncture the petition mentioned properties attached through order passed in I.A.No.419/2012 in O.S.No.116/2012 as attachment before judgment for the claim of 1st Respondent against the 2nd Respondent is *per ignoratium*. Moreover, on perusal of Ex.P9 it shows that, the petition mentioned properties of Item Nos.1 to 5 are already removed from attachment on 21.09.2024 through registered Doc.No.36/2024. On further analysis of the entries made in the encumbrances, it is re-assured that the petition mentioned properties attached in I.A.No.419/2012 in O.S.No.116/2012 was removed by court order. In which petition mentioned properties Item Nos.6 and 7 are left out from the removal of

attachment and still exists in the attachment. At this juncture, From Ex.P1 it is clear that, the petition mentioned properties are belongs to petitioners, even at the time of attachment made in the year 2012 also the 2nd Respondent didn't have any right over the petition mentioned properties, so the petition mentioned properties are not liable for the claim of the 1st Respondent against the 2nd Respondent. Hence the petition mentioned properties are free from encumbrance and liable to be removed from attachment. Further, from Ex.P9 petition mentioned properties Item Nos. 1 to 5 are already removed from attachment. Therefore, it is not necessary to pass order against petition mentioned properties Item Nos. 1 to 5. So, this court constrained to pass order against petition mentioned properties Item No. 6 and 7 and inclined to allow this application.

In the result, this application is allowed. Accordingly the attachment made over the petition mentioned properties Item Nos. 6 and 7 through a registered Doc.No.8/2012 on 23.07.2012 by way of order passed in I.A.No.419/2012 in O.S.No.116/2012 is hereby (raised) removed. The Registry is hereby directed to give intimation regarding the removal of attachment over the petition mentioned properties Item Nos. 6 and 7 to be communicated to the concerned Sub-Registrar office to make proper/necessary entries in the encumbrance. No cost.

Typed by me in my laptop, corrected and pronounced by me in open court on this 25th day of March 2026p.

ELAKIYA
Digitally signed
by ELAKIYA
Date: 2026.03.25
15:53:23 +0530

**Principal District Munsif,
Ulundurpet.**

PETITIONER/PLAINTIFF SIDE WITNESSES:

Nil

PETITIONER/PLAINTIFF SIDE EXHIBITS:

Exhibits	Date	Description of Documents	Remarks
Ex.P1	26.03.2009	Sale Deed for petition mentioned properties in the name of 1 st Petitioner's husband Kannan, Document No. 737/2009.	Original
Ex.P2	06.04.2024	Patta for Item Nos.1 to 5 stands in the name of the Petitioners, Patta No.4219	Computerized Copy (Digitally Signed)
Ex.P3	09.04.2024	Patta for Item No.6 stands in the name of the Petitioners, Patta No.2154	Computerized Copy (Digitally Signed)
Ex.P4	09.04.2024	Patta for Item No.7 stands in the name of the Petitioners, Patta No.4219	Computerized Copy (Digitally Signed)
Ex.P5	22.08.2012	Attachment of petition mentioned properties, Document No. 8/2012	Certified Copy
Ex.P6	09.04.2024	Encumbrance Certificate for the period from 01.01.2007 to 08.04.2024.	Computerized Copy
Ex.P7	28.06.2019	Death Certificate of Kannan	Certified Copy (Digitally Signed)
Ex.P8	13.11.2019	Legal Heir Certificate of Kannan	Certified Copy (Digitally Signed)

Ex.P9	20.08.2025	Encumbrance Certificate for the period from 01.01.2007 to 19.08.2025.	Computerized Copy
-------	------------	---	-------------------

RESPONDENTS/DEFENDANTS' SIDE WITNESSES AND EXHIBITS:

Nil

ELAKIYA

Digitally signed by
ELAKIYA
Date: 2026.03.25
15:53:50 +0530

**Principal District Munsif,
Ulundurpet.**

Fair Order

IA 03/2024 in

IA.419/2012 in

OS.116/2012

Date: 25.03.2026